

Islamuddin v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 27 July 2021 · WRIT - C No. 14946 of 2021 · **Writ disposed of; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ challenging a demand notice for electricity dues is not decided on merits. The consumer must approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005 with a proper objection; the Engineer is then obliged to decide expeditiously in accordance with law.

FACTUAL SUMMARY

Islamuddin petitioned the Allahabad High Court against a demand notice dated 7 January 2021 under which electricity dues were claimed from him. On 22 July 2021 the Division Bench adjourned the writ so that notice could be served on respondent no. 3. When the matter was taken up as fresh on 27 July 2021, counsel appeared for that respondent. The Court did not examine whether the demand was correct and confined itself to the statutory forum for a billing objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand notice — representation to Executive Engineer

HOLDING

A writ challenging a demand notice for electricity dues is disposed of by relegating the consumer to Clause 6.5 of the Electricity Supply Code, 2005. The proper course is to approach the Executive Engineer with a proper objection in accordance with that clause; if so approached, the Engineer is obliged to decide expeditiously in accordance with law.

¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the 07.01.2021 demand notice was disposed of without a merits decision, directing the petitioner to Clause 6.5 instead of Article 226 relief. ¶ 1

clause-6.5-objection-must-be-in-proper-form The Court required a proper objection in accordance with Clause 6.5 before the Executive Engineer would be obliged to decide. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The grievance against electricity dues demanded by notice dated 07.01.2021 was sent to the Executive Engineer under Clause 6.5. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 07.01.2021 AND THE ELECTRICITY DUES CLAIMED

Writ disposed of by remittal to the Executive Engineer under Clause 6.5; no finding on the bill. ¶ 1